

Terms and Conditions for JSE Ai

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1. Introduction

Welcome to JSE Ai, a web application designed to assist students who are about to graduate and professionals in automating their job applications (the "Service"). These Terms and Conditions ("Terms") govern your use of the Service operated by Arshan UG, a limited liability company registered in Berlin, Germany. By accessing or using the Service, you agree to be bound by these Terms. If you do not agree with these Terms, you must not use the Service.

2. Eligibility

The Service is restricted to individuals who are 18 years of age or older. By using the Service, you represent and warrant that you are at least 18 years old and have the legal capacity to enter into these Terms. If you do not meet these requirements, you are prohibited from accessing or using the Service.

3. User Accounts

To access the Service, you must create an account by providing accurate and complete information, including personal details, experience, and professional background. You are responsible for:

- Maintaining the confidentiality of your account credentials.
- All activities that occur under your account.

You must notify Arshan UG immediately of any unauthorized use of your account or any other security breach. Arshan UG is not liable for any loss or damage arising from your failure to protect your account credentials.

4. Use of the Service

You agree to use the Service only for lawful purposes and in accordance with these Terms. Prohibited activities include, but are not limited to:

- Attempting to gain unauthorized access to the Service, its systems, or data.
- Engaging in activities that disrupt, damage, or interfere with the functionality of the Service, including hacking, introducing malware, or overloading the system.
- Using the Service for any illegal or unauthorized purpose, including violating applicable laws or regulations.

Violation of these restrictions may result in immediate termination of your account and potential legal action.

5. User Data and Privacy

Arshan UG collects personal information (e.g., name, email, address), payment details, user-generated content (e.g., AI-generated CVs and cover letters you may edit and save), experience and professional details (e.g., work experience, skills, education), and usage data to provide the Service. Your data will be processed in accordance with our Privacy Policy, available at [Insert Privacy Policy URL or note it will be provided separately], which complies with the General Data Protection Regulation (GDPR) and German data protection laws (BDSG). By using the Service, you consent to the collection and use of your data as described in these Terms and the Privacy Policy.

6. Data Sharing with Universities

If you are currently studying or have graduated within the last 6 months from a university, and you provide explicit consent during signup (via a non-pre-ticked opt-in checkbox), your personal data (e.g., name, email), user-generated content (e.g., CVs and cover letters), and experience and professional details may be shared with the university where you have studied to support your career goals. You may withdraw this consent at any time by contacting Info@arshan.de. Data sharing will be conducted in accordance with our Privacy Policy and applicable data protection laws.

7. Third-Party Services

The Service integrates third-party services, including:

- **OpenAI:** For AI-powered generation of CVs and cover letters.
- **Stripe:** For processing subscription payments.

Your use of these third-party services is subject to their respective terms of service and privacy policies. Arshan UG is not responsible for the performance, availability, or policies of these third-party services.

8. Subscriptions and Payments

8.1 Subscription Fees

The Service is provided on a subscription basis. You agree to pay the subscription fees as outlined during the registration or checkout process. All payments are processed securely through Stripe.

8.2 No Refunds

All subscription fees are non-refundable, in accordance with German consumer protection laws. No refunds will be provided for any payments made, even if you choose to cancel your subscription early.

8.3 Cancellation

You may cancel your subscription at any time through your account settings. Upon cancellation, your access to the Service will continue until the end of the current subscription period, after which it will terminate. No partial refunds will be provided for the remaining subscription period.

8.4 Price Changes

Arshan UG reserves the right to modify subscription fees at any time. You will be notified of any price changes at least 14 days in advance, in compliance with German law. Continued use of the Service after a price change constitutes your acceptance of the new fees.

9. Intellectual Property

The concept and idea behind JSE Ai are the intellectual property of Arshan UG. All software, designs, text, and other materials within the Service are owned by Arshan UG or its licensors and are protected by German and international intellectual property laws. You may not copy, reproduce, distribute, or create derivative works from the Service without prior written consent from Arshan UG.

9.1 User-Generated Content

You retain ownership of any user-generated content you provide or edit (e.g., CVs and cover letters). By submitting or editing such content, you grant Arshan UG a non-exclusive, worldwide, royalty-free license to use, store, and process this content solely for the purpose of providing the Service and, where applicable, sharing it with the university where you have studied as described in Section 6. You represent and warrant that your content does not infringe on any third-party rights.

10. Termination

Arshan UG may suspend or terminate your account at its sole discretion, with or without notice, for:

- Violating these Terms, including engaging in prohibited activities.
- Attempting to misuse or violate the Service, such as unauthorized access or harmful actions.
- Failure to pay subscription fees.

Upon termination, your access to the Service will cease immediately, and any user-generated content may be deleted, subject to applicable data retention laws under GDPR and German law.

11. Limitation of Liability

To the fullest extent permitted by German law, Arshan UG shall not be liable for any indirect, incidental, special, or consequential damages arising from your use of or inability to use the Service, including but not limited to:

- Data loss or corruption, including loss of CVs, cover letters, or professional details.
- Service interruptions or downtime.
- Errors or inaccuracies in the AI-generated or user-edited content.

The Service is provided on an "as is" and "as available" basis without warranties of any kind, express or implied, including warranties of merchantability or fitness for a particular purpose. Arshan UG does not guarantee the accuracy, completeness, or reliability of the Service or its outputs, including AI-generated CVs or cover letters.

12. Governing Law and Jurisdiction

These Terms shall be governed by and construed in accordance with the laws of Germany, specifically the laws applicable in Berlin, without regard to its conflict of law provisions. Any disputes arising under these Terms shall be subject to the exclusive jurisdiction of the courts in Berlin, Germany.

13. Consumer Rights

As a consumer in Germany, you may have certain statutory rights under the German Civil Code (BGB) and EU consumer protection laws, including the right to clear information about the Service. These Terms do not limit or exclude any mandatory rights you may have. Note that digital services may be subject to a 14-day right of withdrawal under EU law, unless you expressly consent to immediate access and waive this right during the subscription process. For more information, contact Arshan UG or consult a legal professional.

14. Changes to These Terms

Arshan UG reserves the right to modify these Terms at any time. Updated Terms will be posted on this page with a revised "Last updated" date and, where required by law, you will be notified in advance (e.g., via email or in-app notification). Your continued use of the Service after such changes constitutes your acceptance of the updated Terms.

15. Contact Information

If you have any questions about these Terms or the Service, please contact us at:

- **Arshan UG**
- **Address:** Kolonnenstr. 8, 10827 Berlin, Germany
- **Email:** Info@arshan.digital